

UPSC GS-II POLITY

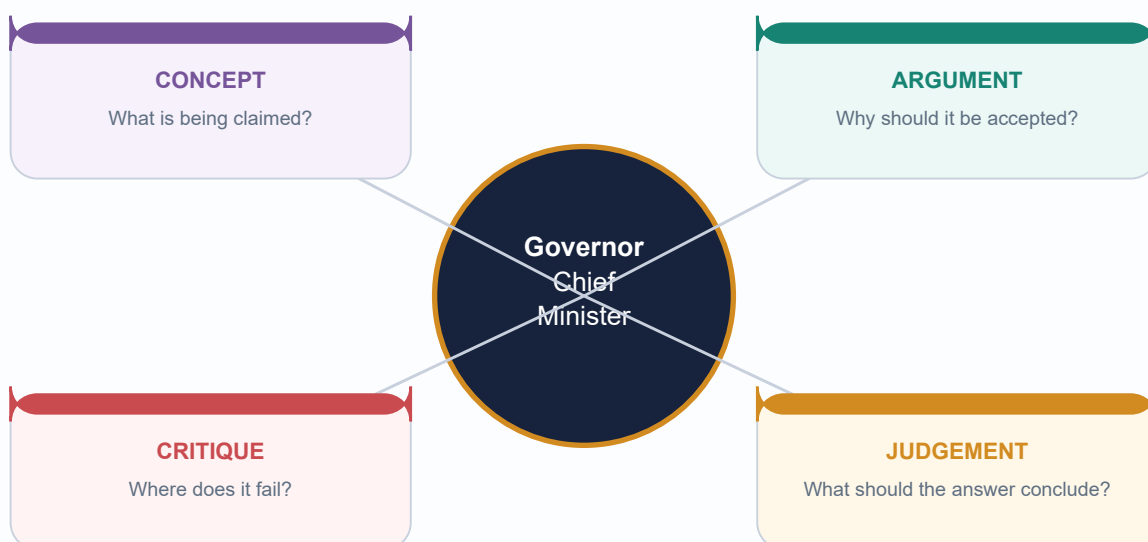
Governor, Chief Minister and the State Council of Ministers

Integrated Basic + Advanced Course

12 deep-learning modules | Articles 153-167 and the 2025 Assent Doctrine

Discretion maps, structural comparisons, case-law timeline, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant Ch. 30-32) and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. The Governor: Appointment, Qualifications and Constitutional Status

GS-II Polity -
State Executive

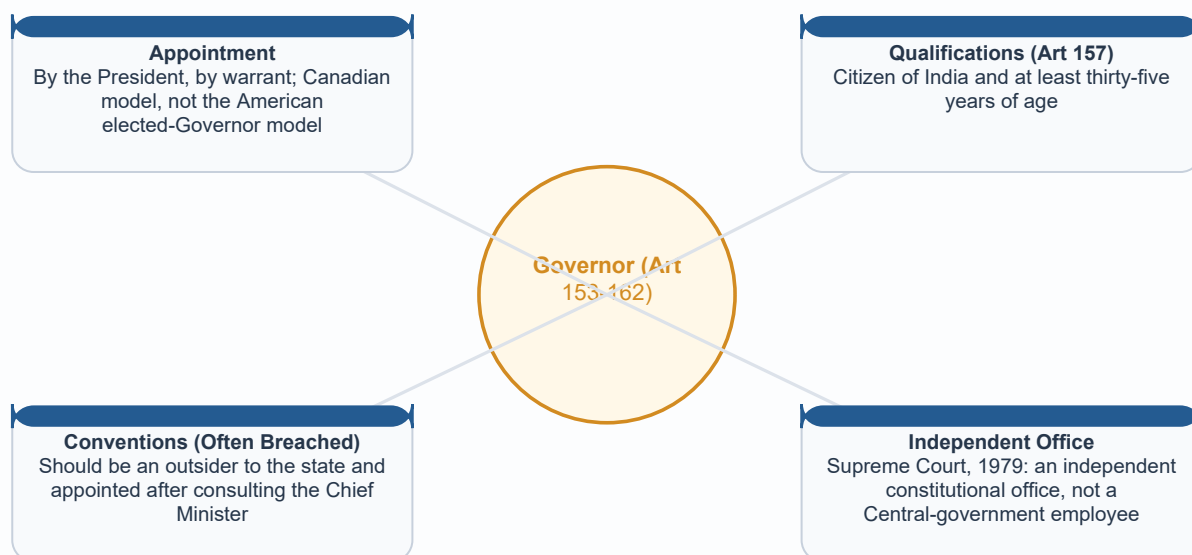
NEWS TRIGGER

Recurring debate over whether Governors act as neutral constitutional heads or as agents of the Centre begins with understanding exactly how, and by whom, they are appointed.

INTRO & ORIGIN

A Governor is not elected but appointed by the President by warrant, following the Canadian model rather than the American elected-Governor model, though the Supreme Court in 1979 clarified this does not make the office a mere Central-government appointment.

HOW A GOVERNOR'S OFFICE IS CONSTITUTED



KEY DATA

Feature	Detail
Appointing authority	President, by warrant
Model followed	Canadian - a nominated, not an elected, Governor
Minimum age	Thirty-five years
Other conditions	Not a member of Parliament or a state legislature; holds no other office of profit
Oath administered by	Chief Justice of the concerned High Court

STATIC THEORY

- The Governor's appointment by presidential warrant, rather than election, reflects the Canadian model of a nominated head of state at the sub-national level.
- Two conventions - appointing an outsider to the state and consulting the Chief Minister beforehand - are frequently breached in practice, feeding into recurring federal controversies.
- The 1979 Supreme Court position establishes that a Governor is an independent constitutional functionary, not simply an extension of the Central government's administrative machinery.
- Because the Governor is not a legislature or Parliament member and holds no other office of profit, the office is structurally insulated from ordinary political roles even while being politically appointed.

MEMORY HOOK

APPOINTED not elected | CANADIAN model | 35 years minimum | INDEPENDENT office (SC, 1979)

MUST-KNOW FACTS

1. A Governor is appointed by the President by warrant, not elected by the people or the state legislature.
2. The minimum age for appointment as Governor is thirty-five years.
3. The convention of consulting the Chief Minister before appointment is frequently breached in practice.
4. The Supreme Court in 1979 held that the Governor's office is an independent constitutional position, not a Central-government job.

UPSC TRAPS

WRONG: The Governor is directly elected by the people of the state.

CORRECT: The Governor is appointed by the President by warrant, following the Canadian model.

WRONG: The minimum age for a Governor is twenty-five, as for a Member of the Legislative Assembly.

CORRECT: The minimum age for a Governor is thirty-five years.

MAINS ANGLE

Examine whether the appointment process and conventions surrounding the Governor's office adequately safeguard its intended neutrality as a constitutional head.

STUDY LINK

State Legislature -> Governor's Role |
Centre-State Relations -> Appointment Conventions

HIGH

2. Term, Removal and the Pleasure Doctrine

GS-II Polity -
Security of
Tenure

NEWS TRIGGER

Mass replacement of Governors after a change of government at the Centre - as happened in 1989 and 1991 - remains the clearest illustration of how thin the Governor's security of tenure actually is.

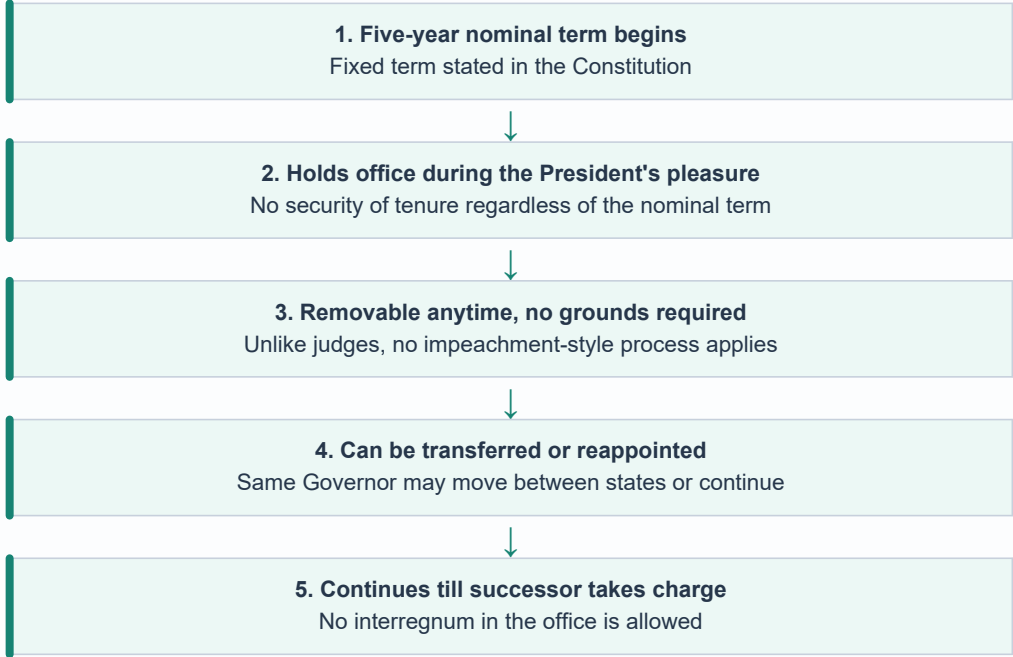
INTRO & ORIGIN

Although a Governor's term is nominally fixed at five years, that term is entirely subordinate to the President's pleasure, meaning the Governor can be removed at any time without any grounds being specified.

KEY DATA

Feature	Detail
Nominal term	Five years
Real security of tenure	None - holds office during the President's pleasure
Removal grounds	None specified; removable at any time
Historical precedent	Mass changes of Governors after regime change in 1989 and 1991
Continuity rule	The Governor continues in office until a successor takes charge

THE GOVERNOR'S TENURE IN PRACTICE



STATIC THEORY

- The five-year term is best understood as a maximum duration, not a guaranteed tenure, because the pleasure doctrine allows removal at any point within that period.
- Unlike judges, who require an elaborate impeachment-style process for removal, a Governor can be removed by a simple exercise of the President's pleasure.
- The continuity rule - that a Governor stays in office until a successor takes charge - prevents any constitutional vacuum in the state's executive headship.
- Mass gubernatorial reshuffles following changes in the ruling party at the Centre, as in 1989 and 1991, illustrate how political rather than fixed-term considerations often govern tenure in practice.

MEMORY HOOK

5-YEAR TERM ON PAPER | PRESIDENT'S PLEASURE IN PRACTICE

MUST-KNOW FACTS

1. A Governor's constitutionally stated term is five years, but actual tenure depends entirely on the President's pleasure.
2. No grounds need to be specified for removing a Governor.
3. A Governor can be transferred between states or reappointed.
4. A Governor continues in office until a successor formally takes charge, avoiding any vacancy.

UPSC TRAPS

WRONG: A Governor enjoys a secure, fixed five-year term like a judge's tenure.

CORRECT: The five-year term is nominal; the Governor holds office during the President's pleasure and can be removed anytime.

WRONG: Removing a Governor requires a process similar to judicial impeachment.

CORRECT: No specified grounds or special process are required; removal rests on the President's pleasure alone.

MAINS ANGLE

Discuss whether tying gubernatorial tenure to the President's pleasure compromises the constitutional neutrality the office is meant to embody.

STUDY LINK

Governor-CM-State-Council -> Appointment and Status | Centre-State Relations -> Political Practice

HIGH**3. The Governor's Powers: Executive, Legislative, Financial and Judicial**

GS-II Polity -
State Executive
Powers

NEWS TRIGGER

Disputes over a Governor's role as university Chancellor, ordinance-making, and bill reservation regularly surface as flashpoints across different states, all tracing back to these four power categories.

INTRO & ORIGIN

The Governor's authority spans four distinct categories, mirroring the President's powers at the Union level but with important structural differences in how they are exercised.

FOUR CATEGORIES OF GUBERNATORIAL POWER**Governor's Powers**

Executive Appoints the Chief Minister, Advocate-General, State Election Commissioner, SPSC chair and members; often a university Chancellor under state statutes, not the Constitution	Legislative Summons, prorogues and dissolves the Assembly; nominates one-sixth of the Legislative Council; assents to, returns or reserves bills; issues ordinances under Article 213
Financial Money bills require the Governor's prior recommendation; oversees the State Finance Commission	Judicial Article 161 - can suspend, remit or commute a sentence, but cannot pardon a death sentence

KEY DATA

Power Category	Key Function
Executive	Appoints CM, Advocate-General, State Election Commissioner, SPSC chair and members
Legislative	Nominates one-sixth of the Legislative Council; can reserve bills for President under Art 200
Financial	Money bills require the Governor's prior recommendation before introduction
Judicial (Art 161)	May suspend, remit or commute a sentence; cannot grant pardon for a death sentence

STATIC THEORY

- The Governor's role as a university Chancellor arises from individual state university statutes, not from any constitutional provision, so it varies from state to state.
- Ordinance-making power under Article 213 mirrors the President's Article 123 power, allowing the Governor to legislate when the Assembly is not in session.
- Financial powers require every money bill to carry the Governor's prior recommendation before it can even be introduced in the Assembly.
- Article 161's judicial power is narrower than the President's Article 72 power because it excludes both death-sentence pardons and court-martial sentences entirely.

MEMORY HOOK

EXECUTIVE, LEGISLATIVE, FINANCIAL, JUDICIAL - four powers, each narrower than the President's equivalent

MUST-KNOW FACTS

1. The Governor nominates one-sixth of the members of the Legislative Council.
2. A Governor cannot pardon a death sentence, though Article 161 permits suspension, remission or commutation.
3. Every money bill in a state requires the Governor's prior recommendation before introduction.
4. A Governor's role as university Chancellor rests on state statutes, not the Constitution itself.

UPSC TRAPS

WRONG: The Governor can pardon a death sentence under Article 161.

CORRECT: The Governor cannot pardon a death sentence; only suspension, remission or commutation are available, and only the President can pardon such sentences.

WRONG: The Governor's role as university Chancellor is a constitutional function.

CORRECT: It arises from state university statutes, not from the Constitution, and therefore varies by state.

MAINS ANGLE

Compare the Governor's four categories of power with the President's equivalent powers to show how gubernatorial authority is deliberately narrower at key points, especially in the judicial domain.

STUDY LINK

President and Vice-President -> Comparable Powers | State Legislature -> Legislative Council

HIGH

4. Governor's Discretion: Express versus Situational

GS-II Polity -
Constitutional
Discretion

NEWS TRIGGER

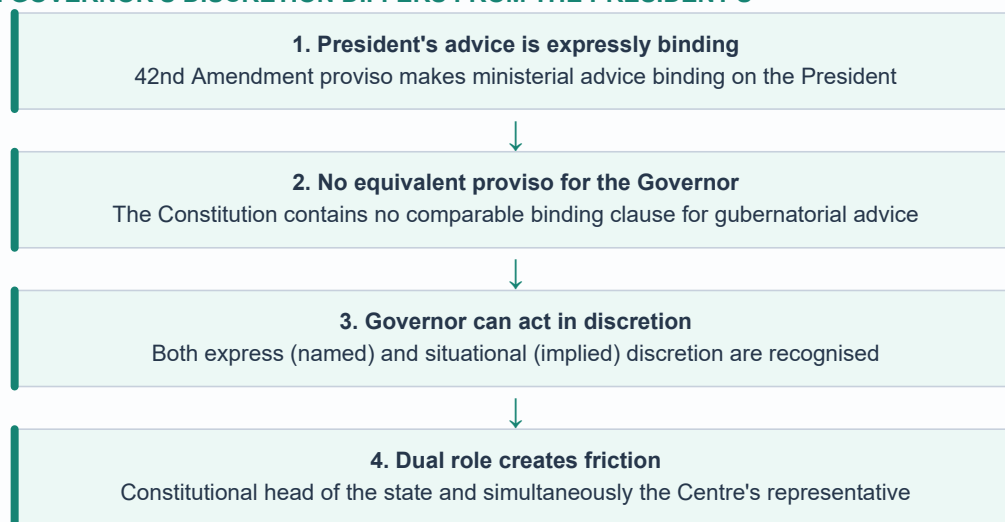
Every controversy over a Governor appointing a Chief Minister in a hung Assembly or delaying a bill's assent turns on the exact boundary between express and situational discretion.

INTRO & ORIGIN

Unlike the President, whose ministerial advice is expressly made binding, the Governor can act in discretion and is not bound in the same explicit way, creating two distinct categories of discretionary action.

KEY DATA

Constitutional (Express) Discretion	Situational (Implied) Discretion
Reserving a bill for the President (Art 200)	Appointing the Chief Minister in a hung Assembly or on the Chief Minister's sudden death
Recommending President's Rule	Dismissing a Council of Ministers that has lost confidence
Functioning as an administrator of a Union Territory (additional charge)	Dissolving the Assembly if the Council of Ministers has lost its majority
Sixth Schedule tribal royalty matters (as in Assam)	-

WHY THE GOVERNOR'S DISCRETION DIFFERS FROM THE PRESIDENT'S**STATIC THEORY**

- The absence of a binding-advice proviso equivalent to the President's 42nd Amendment clause is the structural reason the Governor retains genuine discretion.
- Express discretion is explicitly named in the constitutional text, such as reserving a bill for the President or recommending President's Rule.
- Situational discretion is not textually named but arises from the practical necessities of a hung Assembly, a sudden vacancy, or a Council of Ministers that has visibly lost its majority.
- The Governor's dual role - as constitutional head of the state and as the Centre's representative - is the structural source of most Centre-state friction over the exercise of discretion.

MEMORY HOOK

EXPRESS discretion is named in the text | **SITUATIONAL** discretion responds to political necessity

MUST-KNOW FACTS

1. Reserving a bill for the President under Article 200 is an express discretionary power of the Governor.
2. Appointing the Chief Minister in a hung Assembly is a situational, not an express, discretionary power.
3. There is no constitutional proviso making ministerial advice expressly binding on the Governor, unlike the President.
4. The Governor's dual role as state head and Centre's representative structurally generates Centre-state tension.

UPSC TRAPS

WRONG: Ministerial advice is expressly binding on the Governor just as it is on the President.

CORRECT: No equivalent binding-advice proviso exists for the Governor, who retains genuine discretion.

WRONG: Reserving a bill for the President is a situational discretionary power.

CORRECT: It is an express, constitutionally named discretionary power under Article 200.

MAINS ANGLE

Assess whether the Governor's discretionary powers, both express and situational, should be codified to reduce recurring Centre-state friction.

STUDY LINK

Emergency Provisions -> President's Rule |
Governor-CM-State-Council -> Governor vs
President Comparison

HIGH

5. Article 161 versus Article 72: The Pardoning Power Compared

GS-II Polity -
Comparative
Powers

NEWS TRIGGER

Confusing the Governor's and President's clemency powers is one of the most frequent errors in questions that test constitutional comparison across offices.

INTRO & ORIGIN

Both the Governor and the President can grant clemency, but the President's Article 72 power is materially wider than the Governor's Article 161 power in two crucial respects.

KEY DATA

Feature	Governor (Art 161)	President (Art 72)
Death sentence	Cannot pardon	Can pardon
Court-martial sentence	Cannot deal with at all	Can pardon, suspend, remit or commute
Suspension, remission, commutation	Available for state-law offences	Available across all offences within its scope
Scope of offences	Limited to matters within the state's executive power	Extends to Union law offences and court-martial cases

STATIC THEORY

- The exclusion of the death-sentence pardon from the Governor's Article 161 power is the single most tested distinction between the two clemency provisions.
- Court-martial sentences fall entirely outside the Governor's reach, whereas the President's Article 72 power explicitly covers them.
- Both powers permit suspension, remission and commutation, but only within their respective scopes of state or Union executive power.
- This comparison is a natural bridge to the broader theme that gubernatorial power is consistently narrower than presidential power across the Constitution.

MEMORY HOOK**GOVERNOR cannot pardon DEATH or COURT-MARTIAL; only the PRESIDENT can****MUST-KNOW FACTS**

1. The Governor cannot pardon a death sentence, though suspension, remission or commutation remain available.
2. Court-martial sentences are entirely outside the Governor's Article 161 power.
3. Only the President, under Article 72, can pardon a death sentence or deal with court-martial sentences.
4. Both Article 161 and Article 72 permit suspension, remission and commutation within their respective scopes.

UPSC TRAPS**WRONG:** The Governor can pardon any sentence, including death sentences, within the state.**CORRECT:** The Governor cannot pardon death sentences; only the President can.**WRONG:** The Governor's Article 161 power extends to court-martial sentences.**CORRECT:** Court-martial sentences remain outside the Governor's power entirely; only the President can act on them.**MAINS ANGLE**

Use the Article 161 versus Article 72 comparison to argue that gubernatorial power is deliberately subordinate to presidential power at every structurally comparable point.

STUDY LINK

President and Vice-President -> Article 72 |
Governor-CM-State-Council -> Governor's Powers

HIGH**6. Chief Minister: Appointment and the Real Executive**GS-II Polity -
State Executive**NEWS TRIGGER**

Every hung-Assembly scenario after a state election revives debate over how much discretion a Governor genuinely has in choosing a Chief Minister.

INTRO & ORIGIN

While the Governor is the nominal head of the state, the Chief Minister is the real executive, appointed by the Governor and normally drawn from the leader of the majority party or coalition in the Assembly.

KEY DATA

Feature	Detail
Appointing authority	Governor
Normal basis	Leader of the majority party or coalition in the Assembly
Discretion scenario	Hung Assembly or sudden death of the sitting Chief Minister
Non-MLA rule	Can serve as Chief Minister for up to six months without being a sitting member
House requirement	May belong to either House of the state legislature where bicameral

HOW A CHIEF MINISTER IS APPOINTED



STATIC THEORY

- The Chief Minister parallels the Prime Minister at the Union level as the real, de facto executive head of government.
- A Chief Minister need not prove majority on the floor of the House before being sworn in; this is typically demonstrated afterwards through a confidence vote.
- Although formally holding office during the Governor's pleasure, a Chief Minister commanding a legislative majority cannot in practice be dismissed.
- The six-month non-MLA rule allows political flexibility in choosing a Chief Minister who has not yet secured a legislative seat.

MEMORY HOOK

GOVERNOR appoints, but MAJORITY protects - a CM cannot be dismissed while holding it

MUST-KNOW FACTS

1. A person who is not a member of the Assembly can serve as Chief Minister for up to six months.
2. A Chief Minister may belong to either House of a bicameral state legislature.
3. The Governor exercises genuine discretion in choosing a Chief Minister only in a hung Assembly or on sudden vacancy.
4. A Chief Minister commanding a legislative majority cannot be dismissed by the Governor.

UPSC TRAPS

- WRONG:** A person who is not a sitting MLA can never become Chief Minister.
- CORRECT:** Such a person can serve as Chief Minister for up to six months before securing a seat.
- WRONG:** The Governor can dismiss a Chief Minister at will, regardless of majority support.
- CORRECT:** A Chief Minister who holds a majority cannot in practice be dismissed by the Governor.

MAINS ANGLE

Discuss the balance between the Governor's formal appointing power and the political reality of majority support in determining who actually governs a state.

STUDY LINK

PM and Council of Ministers -> Parallel at the Union Level | Governor-CM-State-Council -> Discretion

HIGH

7. Chief Minister's Powers and the Governor-CM Relationship (Article 167)

GS-II Polity -
State Executive
Coordination

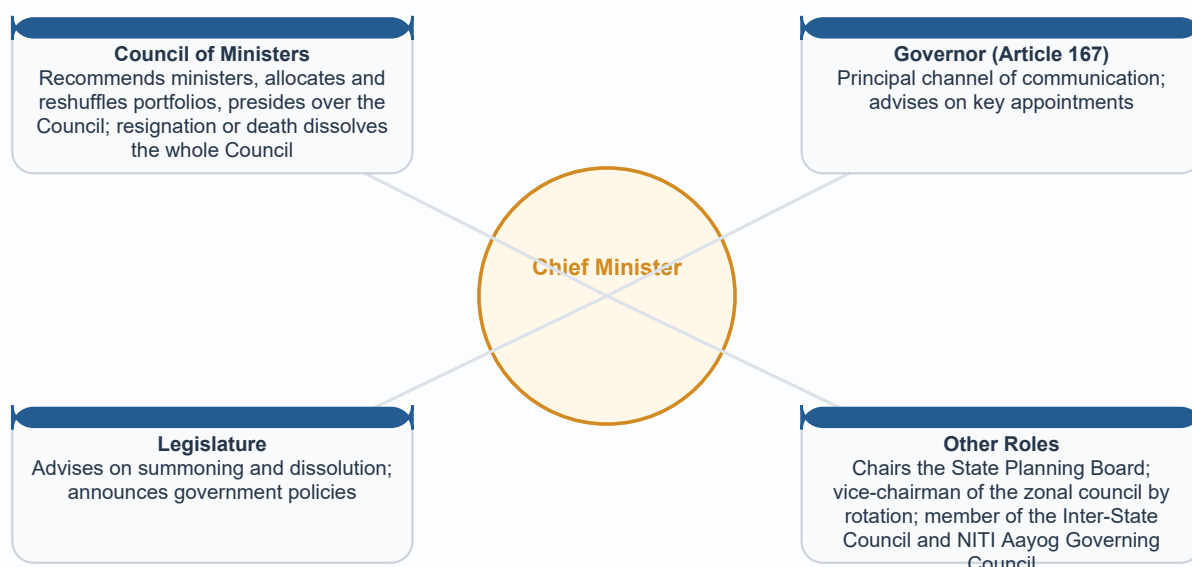
NEWS TRIGGER

Article 167's requirement that the Chief Minister keep the Governor informed of all administrative and legislative decisions is central to understanding how the state executive is meant to function as a coordinated whole.

INTRO & ORIGIN

Article 167 makes the Chief Minister the principal channel of communication between the Council of Ministers and the Governor, ensuring the nominal head is never left unaware of the government's decisions.

THE CHIEF MINISTER'S WEB OF RESPONSIBILITIES



KEY DATA

Role	Function
Head of the Council of Ministers	Allocates portfolios; resignation or death dissolves the entire Council
Communication channel (Art 167)	Keeps the Governor informed of all legislative and administrative decisions
Legislature-related	Advises the Governor on summoning and dissolving the Assembly
Inter-governmental roles	Member of the Inter-State Council and NITI Aayog Governing Council; vice-chairman of the zonal council by rotation

STATIC THEORY

- Article 167's communication duty is a constitutional safeguard ensuring the Governor is not bypassed even while remaining the nominal, non-executive head.
- A Chief Minister's resignation or death automatically dissolves the entire Council of Ministers, showing how tightly the Council's existence is tied to the Chief Minister personally.
- The Chief Minister's membership of the Inter-State Council and NITI Aayog Governing Council extends the office's role well beyond the state into cooperative-federalism institutions.
- Chairing the State Planning Board and rotating as zonal council vice-chairman are additional coordinating roles that connect state governance with regional and national planning.

MEMORY HOOK

ARTICLE 167 = CM must keep the GOVERNOR informed of everything

MUST-KNOW FACTS

1. Article 167 requires the Chief Minister to communicate all Council of Ministers' decisions on administration and legislation to the Governor.
2. The resignation or death of the Chief Minister dissolves the entire Council of Ministers.
3. The Chief Minister is a member of both the Inter-State Council and the NITI Aayog Governing Council.
4. The Chief Minister serves as vice-chairman of the zonal council by rotation.

UPSC TRAPS

WRONG: The Governor has no constitutional right to be informed of Council of Ministers decisions.

CORRECT: Article 167 explicitly obliges the Chief Minister to communicate such decisions to the Governor.

WRONG: Individual ministers can continue in office even after the Chief Minister resigns.

CORRECT: The Chief Minister's resignation or death dissolves the entire Council of Ministers.

MAINS ANGLE

Explain how Article 167 institutionalises the flow of information from the real executive to the nominal head, preserving the Governor's constitutional relevance without conferring real power.

STUDY LINK

NITI Aayog -> Inter-Governmental Bodies | Governor-CM-State-Council -> Council of Ministers

HIGH

8. State Council of Ministers: Composition and the 91st Amendment

GS-II Polity -
Collective
Responsibility

NEWS TRIGGER

Cabinet-size controversies in several states, where governments have been challenged for exceeding the constitutional ceiling on ministers, keep the 91st Amendment's cap in continuous relevance.

INTRO & ORIGIN

Article 163 makes the Council of Ministers, headed by the Chief Minister, responsible for aiding and advising the Governor except where the Governor is required to act in discretion, while Article 164 governs its composition and size.

KEY DATA

Provision	Rule
Article 163	Council of Ministers aids and advises the Governor, except in matters of discretion
Article 164	Chief Minister appointed by the Governor; other ministers appointed on the Chief Minister's advice
91st Amendment, 2003	Total ministers capped at fifteen percent of Assembly strength, with a minimum of twelve
Defector bar	A person disqualified under the anti-defection law cannot be appointed a minister
Compulsory portfolio	Tribal Welfare Minister mandatory in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha; Bihar excluded by the 94th Amendment

BUILDING THE STATE COUNCIL OF MINISTERS**STATIC THEORY**

- The 91st Amendment's fifteen-percent cap, with a floor of twelve ministers, was introduced to curb oversized ministries seen in several states before 2003.
- Barring a defector from ministerial appointment closes a loophole that could otherwise have rewarded defection with executive office.
- Collective responsibility to the Legislative Assembly means the entire Council of Ministers must resign if it loses the confidence of the House, not merely the minister directly implicated in any controversy.
- The compulsory Tribal Welfare Minister requirement in four named states, with Bihar specifically excluded by the 94th Amendment, is a precise, state-specific exception worth remembering exactly.

MEMORY HOOK

91st AMENDMENT: ≤15% of Assembly, minimum 12 ministers, no defectors

MUST-KNOW FACTS

1. The 91st Amendment of 2003 caps total ministers at fifteen percent of Assembly strength, with a minimum of twelve.
2. A person disqualified under the anti-defection law cannot be appointed a minister.
3. A compulsory Tribal Welfare Minister is required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha.
4. Bihar is excluded from the compulsory Tribal Welfare Minister requirement by the 94th Amendment.

UPSC TRAPS

WRONG: The 91st Amendment caps ministers at fifteen percent of both Houses of the state legislature.

CORRECT: The cap applies to fifteen percent of the Legislative Assembly's strength specifically, with a minimum of twelve ministers.

WRONG: Bihar is included among the states requiring a compulsory Tribal Welfare Minister.

CORRECT: Bihar is specifically excluded from this requirement by the 94th Amendment.

MAINS ANGLE

Evaluate whether the 91st Amendment's ceiling on ministerial strength has succeeded in curbing oversized state ministries while preserving effective governance.

STUDY LINK

Anti-Defection Law -> Ministerial Bar |
Scheduled and Tribal Areas -> Tribal Welfare Portfolio

HIGH

9. Governor versus President: A Structural Comparison

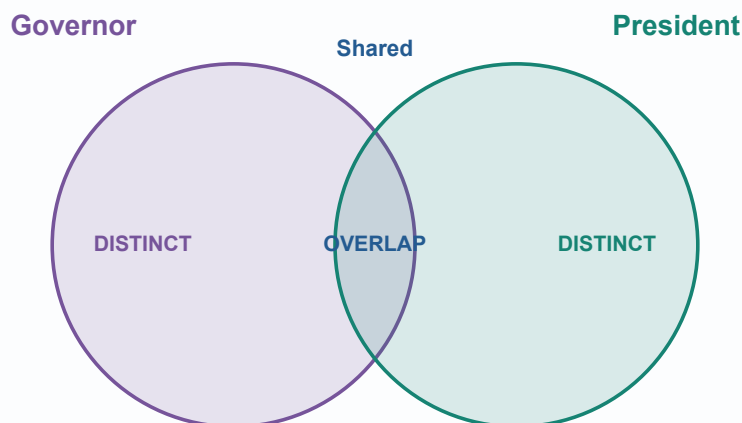
GS-II Polity -
Comparative
Constitutionalism

NEWS TRIGGER

Any question asking why state and Union executives are not perfect mirror images of each other rests on the precise structural differences assembled in this module.

INTRO & ORIGIN

Although the Governor is often described as the state-level counterpart of the President, three structural differences make the comparison only partial: discretion, binding advice, and the scope of clemency power.

GOVERNOR AND PRESIDENT: WHERE THEY DIVERGE**Governor**

- Can act in discretion, express and situational
- Ministerial advice is not expressly binding
- No security of tenure - holds office at pleasure
- Cannot pardon a death sentence or court-martial

Shared

- Nominal, constitutional head of the executive
- Appoints the head of government (CM / PM)
- Summons, prorogues and can dissolve the legislature

President

- No comparable discretion in ordinary matters
- Ministerial advice is expressly binding (42nd Amendment)
- Fixed five-year term with impeachment-level security
- Can pardon a death sentence and court-martial sentences (Art 72)

The Governor retains more personal discretion but far less security of tenure than the President - an intentional asymmetry, not an oversight.

STATIC THEORY

- The Governor's capacity to act in discretion, both express and situational, has no real equivalent for the President in ordinary constitutional practice.
- The 42nd Amendment's proviso makes ministerial advice expressly binding on the President, but no equivalent proviso exists for the Governor.
- Security of tenure is inverted between the two offices: the President enjoys a fixed term removable only through impeachment, while the Governor holds office entirely at the President's pleasure.
- The clemency-power gap - full pardon power for the President against a narrower, death-sentence-excluding power for the Governor - is the clearest textual marker of the asymmetry between the two offices.

MEMORY HOOK

GOVERNOR: more discretion, less security | PRESIDENT: less discretion, more security

MUST-KNOW FACTS

1. The Governor can act in discretion in ways the President generally cannot in ordinary constitutional practice.
2. Ministerial advice is expressly binding on the President under the 42nd Amendment proviso, but not on the Governor.
3. The President has a fixed five-year term with impeachment-level security; the Governor holds office at the President's pleasure alone.
4. The President's pardon power under Article 72 is wider than the Governor's under Article 161, covering death sentences and court-martial cases.

UPSC TRAPS

WRONG: The Governor and President have identical constitutional powers, differing only in the level of government they serve.

CORRECT: They differ structurally in discretion, binding advice and clemency scope, not merely in the level of government.

WRONG: The Governor enjoys the same security of tenure as the President.

CORRECT: The Governor holds office at the President's pleasure with no fixed security, unlike the President's protected five-year term.

MAINS ANGLE

Critically compare the Governor and President to argue that the Constitution deliberately built more personal discretion into the state-level office while withholding the tenure security that would make such discretion safely exercisable.

STUDY LINK

President and Vice-President -> Article 72 |
Governor-CM-State-Council -> Discretion

HIGH

10. Governor's Assent to Bills: Articles 200-201 and the 2025 Doctrine

GS-II Polity -
Federalism and
Judicial Review

NEWS TRIGGER

Two Supreme Court rulings within the same year - one prescribing timelines in April 2025 and a later five-judge opinion in November 2025 declining to impose rigid timelines - together define the current, carefully qualified doctrine on gubernatorial delay in assenting to bills.

INTRO & ORIGIN

Article 200 gives the Governor four options on a bill passed by the state legislature - assent, withhold assent, return it for reconsideration, or reserve it for the President - while Article 201 governs what happens to a reserved bill.

TIMELINE

8 Apr 2025 — State of Tamil Nadu v. Governor of Tamil Nadu (2025 INSC 481) prescribes timelines and applies deemed assent on the specific facts before the Court.

20 Nov 2025 — In re: Assent, Withholding or Reservation of Bills (2025 INSC 1333), a five-judge Article 143 opinion, holds that Articles 200 and 201 contain no court-created rigid timelines or automatic deemed assent.

THE ASSENT DOCTRINE EVOLVES WITHIN A SINGLE YEAR

8 Apr 2025

Timelines and deemed assent applied on facts



20 Nov 2025

No rigid timelines; limited scrutiny confirmed instead

KEY DATA

Ruling	Core Holding
State of Tamil Nadu v. Governor of Tamil Nadu (8 Apr 2025, 2025 INSC 481)	Prescribed timelines and used deemed assent on the specific facts of that case
In re: Assent, Withholding or Reservation of Bills (20 Nov 2025, 2025 INSC 1333)	Held that Articles 200/201 permit no court-created rigid timelines or automatic deemed assent
Net current doctrine	No fixed timeline or automatic assent exists, but prolonged, unexplained, indefinite inaction remains open to limited judicial scrutiny and mandamus

STATIC THEORY

- This later, five-judge Article 143 opinion of 20 November 2025 qualifies the timeline and deemed-assent reasoning that the Tamil Nadu judgment had applied on its own facts in April 2025.
- The current doctrine avoids both extremes: it neither imposes a rigid textual timeline the Constitution does not itself specify, nor gives the Governor unchecked, indefinite discretion to withhold or reserve a bill.
- Mandamus remains available as a judicial remedy against prolonged, unexplained and indefinite gubernatorial inaction, even without a fixed deadline.
- This sequence exemplifies how apex-court doctrine itself evolves within months, and how the later, larger-bench opinion authoritatively qualifies an earlier ruling's broader reasoning.

MEMORY HOOK

APR 2025: TIMELINES ON FACTS | NOV 2025: NO RIGID TIMELINE, BUT LIMITED SCRUTINY SURVIVES

MUST-KNOW FACTS

- 1. Article 200 gives the Governor four options on a state bill: assent, withhold assent, return for reconsideration, or reserve for the President.
- 2. The 20 November 2025 five-judge Article 143 opinion held that Articles 200 and 201 do not permit court-created rigid timelines or automatic deemed assent.
- 3. This later opinion qualifies the timeline and deemed-assent reasoning applied in the 8 April 2025 Tamil Nadu judgment.
- 4. Prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial scrutiny and mandamus even under the later doctrine.

UPSC TRAPS

- WRONG:** The Supreme Court has permanently fixed a strict timeline for gubernatorial assent under Article 200.
- CORRECT:** The later, five-judge opinion of 20 November 2025 held that no such rigid, court-created timeline exists.
- WRONG:** A Governor's inaction on a bill can never be judicially questioned after the November 2025 opinion.
- CORRECT:** Prolonged, unexplained and indefinite inaction remains subject to limited judicial scrutiny and mandamus even under that opinion.

MAINS ANGLE

Trace the 2025 evolution of the assent doctrine to argue that constitutional courts are balancing federal respect for gubernatorial discretion against the need to prevent indefinite paralysis of state legislation.

STUDY LINK

Supreme Court -> Advisory Jurisdiction (Art 143) | Centre-State Relations -> Bill Assent Disputes

HIGH

11. Recurring Centre-State Friction Over Gubernatorial Conduct

GS-II Polity - Federal Practice

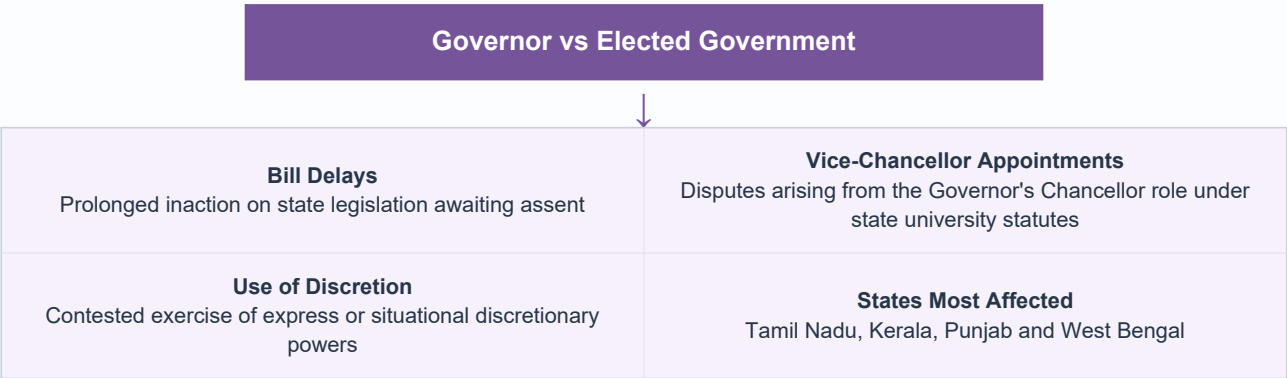
NEWS TRIGGER

Tamil Nadu, Kerala, Punjab and West Bengal have each seen recurrent friction between elected state governments and their Governors over bill delays, university Vice-Chancellor appointments, and the use of discretion.

INTRO & ORIGIN

Beyond the specific 2025 assent-doctrine rulings, a wider pattern of recurring friction between elected state governments and Governors has emerged across several states, centred on bill delays, Vice-Chancellor appointments, and discretionary conduct generally.

RECURRING SITES OF CENTRE-STATE GUBERNATORIAL FRICTION



STATIC THEORY

- Bill delays, Vice-Chancellor appointment disputes and contested exercises of discretion form a recurring, verified pattern across several named states.
- Because the Governor's Chancellor role rests on state statutes rather than the Constitution, disputes in that area often intersect state higher-education law with constitutional questions of gubernatorial propriety.
- This pattern of friction is the practical backdrop against which the 2025 assent-doctrine rulings and long-standing calls to codify discretion must be read.
- Recognising this as a structural, dual-role problem - rather than attributing it to any single Governor or state - is essential for a balanced Mains answer.

MEMORY HOOK

TAMIL NADU, KERALA, PUNJAB, WEST BENGAL - bill delays, VC appointments, discretion disputes

MUST-KNOW FACTS

1. Recurrent Governor-versus-elected-government friction has been noted in Tamil Nadu, Kerala, Punjab and West Bengal.
2. Bill delays are one of the most frequently cited flashpoints in this friction.
3. University Vice-Chancellor appointments are a recurring subject of dispute tied to the Governor's Chancellor role.
4. This friction stems structurally from the Governor's dual role as state head and Centre's representative.

UPSC TRAPS

WRONG: Gubernatorial friction with elected governments is confined to a single state.

CORRECT: It has recurred across several states, including Tamil Nadu, Kerala, Punjab and West Bengal.

WRONG: Vice-Chancellor appointment disputes have no connection to the Governor's constitutional role.

CORRECT: They connect to the Governor's Chancellor role under state university statutes, feeding into broader propriety debates.

MAINS ANGLE

Analyse whether recurring gubernatorial friction across multiple states reflects a structural design flaw in the Governor's dual role, rather than isolated instances of individual conduct.

STUDY LINK

Centre-State Relations -> Federal Friction |
Governor-CM-State-Council -> Assent
Doctrine

HIGH

12. UPSC Answer-Writing Framework: Governor Reform and Federal Balance

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

The 2025 Presidential Reference on gubernatorial assent gives examiners a fresh, verified hook to test whether candidates can balance federalism with executive accountability in a single coherent answer.

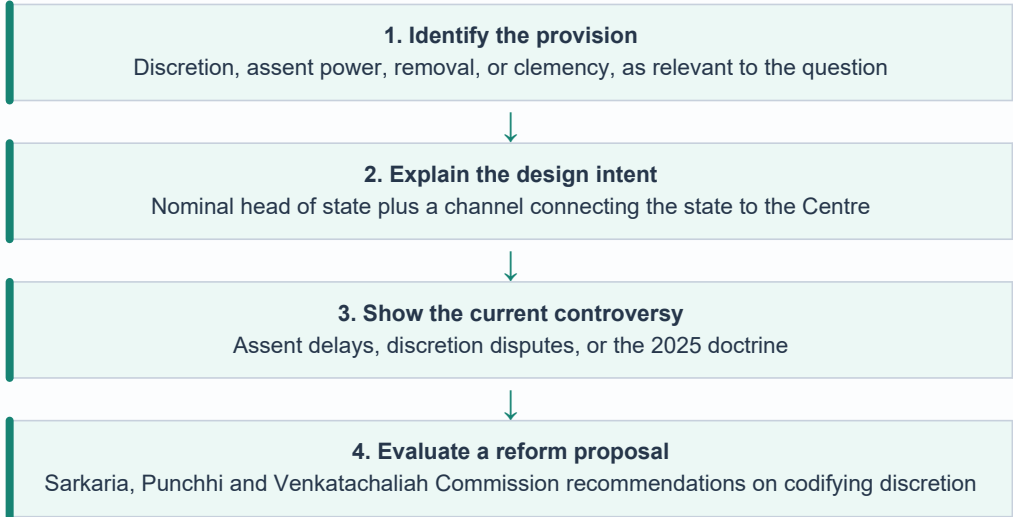
INTRO & ORIGIN

A strong answer on the Governor's office identifies the specific provision or controversy at stake, explains the design intent behind it, links it to a current dispute, and evaluates a concrete reform proposal rather than offering only descriptive criticism.

KEY DATA

Question Theme	Core Argument	Key Illustration
Governor as an agent of the Centre	The office's dual role structurally invites this criticism, but the 1979 ruling affirms its independent constitutional status	Mass reshuffles of 1989 and 1991
Codifying discretionary powers	Express and situational discretion could be given clearer statutory or conventional boundaries	Sarkaria, Punchhi, Venkatachaliah Commission recommendations
Assent delay and federal balance	The 2025 rulings balance respect for gubernatorial discretion against preventing indefinite paralysis	8 April 2025 and 20 November 2025 Supreme Court rulings
Governor versus President asymmetry	More discretion but less tenure security is a deliberate, not accidental, constitutional design choice	Article 161 versus Article 72 clemency comparison

THE FOUR-STEP METHOD FOR GOVERNOR QUESTIONS



STATIC THEORY

- Sarkaria, Punchhi and Venkatachaliah Commission recommendations on codifying gubernatorial discretion form the standard reform reference point for this theme.
- A complete answer avoids treating the Governor's office as either wholly compromised or wholly neutral, instead evaluating specific reform proposals against the office's dual constitutional role.
- The 2025 Presidential Reference and its predecessor ruling together supply the most current, verified case-law anchor for any Governor-related Mains answer.
- This module's four-step method applies equally to questions on discretion, removal, clemency or assent, making it the most reusable framework in this topic.

MEMORY HOOK

IDENTIFY provision -> EXPLAIN design intent -> SHOW controversy -> EVALUATE reform

MUST-KNOW FACTS

1. The Sarkaria, Punchhi and Venkatachaliah Commissions have each recommended clearer boundaries for gubernatorial discretion.
2. The 20 November 2025 Presidential Reference is the most current verified case-law anchor on Governor's assent powers.
3. Mass gubernatorial reshuffles after regime change at the Centre, in 1989 and 1991, remain the standard historical illustration of political misuse concerns.
4. The Governor-President asymmetry - more discretion but less tenure security - is a deliberate constitutional design choice, not an oversight.

UPSC TRAPS

WRONG: Reform of the Governor's office is a purely theoretical debate with no committee recommendations on record.

CORRECT: The Sarkaria, Punchhi and Venkatachaliah Commissions have all made specific recommendations on codifying discretion.

WRONG: Every Governor-related question can be answered by simply describing Articles 153 to 162.

CORRECT: Each question requires linking the specific provision to its current controversy and a concrete reform evaluation.

MAINS ANGLE

Model thesis: the Governor's office was designed as a nominal constitutional head with a federal-liaison function, but sustained reform - through codified discretion and adherence to constitutional conventions - is necessary to prevent its dual role from being reduced to partisan instrumentality.

STUDY LINK

Governor-CM-State-Council -> Assent
Doctrine | Centre-State Relations -> Federal Reform

End of Register Notes — UPSC Agent / Copilot CLI